

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3088

By: Timmons

AS INTRODUCED

An Act relating to courts; amending 20 O.S. 2021, Section 106.9, as last amended by Section 1, Chapter 263, O.S.L. 2023 (20 O.S. Supp. 2025, Section 106.9), which relates to court reporter salaries; increasing salary; increasing longevity payments after first fifteen years; increasing equipment allowance to Four Thousand Dollars; amending 20 O.S. 2021, Section 125, as last amended by Section 4, Chapter 316, O.S.L. 2025 (20 O.S. Supp. 2025, Section 125), which relates to secretary-bailiff salaries; creating salary schedule for secretary-bailiffs; providing for longevity payments; setting amounts; defining years of service; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 20 O.S. 2021, Section 106.9, as last amended by Section 1, Chapter 263, O.S.L. 2023 (20 O.S. Supp. 2025, Section 106.9), is amended to read as follows:

Section 106.9. A. Each court reporter regularly engaged by the district court, the Workers' Compensation Court of Existing Claims, or the Corporation Commission shall be paid a salary pursuant to the

1 salary schedule established by the annual appropriation for the
2 district courts and Corporation Commission and in accordance with
3 the job description for the position to which appointed. For fiscal
4 year ~~2023~~ 2027 and each fiscal year thereafter, each court reporter
5 shall receive an annual salary of ~~Fifty-three Thousand Dollars~~
6 ~~(\$53,000.00)~~ Seventy-five Thousand Dollars (\$75,000.00).

7 B. In addition to their base salaries, official court reporters
8 who are certified or licensed shorthand reporters and those acting
9 shorthand reporters pursuant to paragraph 3 of Section 106.3B of
10 this title shall be paid annually the sum of Four Hundred Dollars
11 (\$400.00) for each year of service for the first fifteen (15) years
12 of service and the sum of Seven Hundred Fifty Dollars (\$750.00) for
13 each year thereafter of service to the district court, the Workers'
14 Compensation Court, the Workers' Compensation Court of Existing
15 Claims and the Corporation Commission, with a maximum of twenty (20)
16 years of service only to be used for the purpose of longevity, not
17 to exceed ~~Eight Thousand Dollars (\$8,000.00)~~ Nine Thousand Seven
18 Hundred Fifty Dollars (\$9,750.00) per year, payable monthly. For
19 the purpose of payment for longevity, "years of service" is defined
20 as all years served as a certified or licensed court reporter in the
21 district court, the Workers' Compensation Court, the Workers'
22 Compensation Court of Existing Claims and the Corporation Commission
23 after June 30, 1978. Longevity payments shall be made on July 1 of

1 each year following completion of the first year of service as
2 defined herein.

3 C. In addition to their base salaries, official court reporters
4 eligible for longevity payments pursuant to subsection B of this
5 section shall be paid an annual equipment allowance of ~~Three~~
6 ~~Thousand Dollars (\$3,000.00)~~ Four Thousand Dollars (\$4,000.00).
7 Payments for such allowance shall be made on July 1 of each year
8 following completion of the first year of service as defined in
9 subsection B of this section.

10 D. In addition to their base salaries, official court reporters
11 who are certified shorthand reporters shall be paid the following:

12 1. The sum of Two Thousand Dollars (\$2,000.00) per year,
13 payable monthly, to any official court reporter who is a Registered
14 Professional Reporter (RPR), as recognized by the State Board of
15 Examiners of Certified Shorthand Reporters. To qualify as a RPR, an
16 official court reporter shall have a proficiency level in reporting
17 testimony and proceedings of a speed of not less than two hundred
18 twenty-five (225) words per minute in taking a question-and-answer-
19 type dictation, two hundred (200) words per minute in taking a jury
20 charge and one hundred eighty (180) words per minute in taking
21 literary material, shall pass a Written Knowledge Test with a score
22 of at least seventy percent (70%), all as determined by an
23 examination recognized by the Board, and shall complete thirty (30)

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1 hours of continuing education per three-year cycle commencing at the
2 date of recognition;

3 2. The sum of Two Thousand Dollars (\$2,000.00) per year,
4 payable monthly, to any official court reporter who is a Registered
5 Merit Reporter (RMR), as recognized by the State Board of Examiners
6 of Certified Shorthand Reporters. To qualify as a RMR, an official
7 court reporter shall have a proficiency level in reporting testimony
8 and proceedings of a speed of not less than two hundred sixty (260)
9 words per minute in taking a question-and-answer-type dictation, two
10 hundred forty (240) words per minute in taking a jury charge and two
11 hundred (200) words per minute in taking literary material, shall
12 pass a Written Knowledge Test with a score of at least seventy
13 percent (70%), all as determined by an examination recognized by the
14 Board, and shall complete thirty (30) hours of continuing education
15 per three-year cycle commencing at the date of recognition;

16 3. The sum of Two Thousand Dollars (\$2,000.00) per year,
17 payable monthly, to any official court reporter who is a Registered
18 Diplomat Reporter (RDR), as recognized by the State Board of
19 Examiners of Certified Shorthand Reporters, and who completes thirty
20 (30) hours of continuing education per three-year cycle commencing
21 at the date of recognition;

22 4. The sum of Two Thousand Dollars (\$2,000.00) per year,
23 payable monthly, to any official court reporter who is a Certified
24 Realtime Reporter (CRR), as recognized by the State Board of

1 Examiners of Certified Shorthand Reporters, and who completes thirty
2 (30) hours of continuing education per three-year cycle commencing
3 at the date of recognition; or

4 5. Any official court reporter who is the holder of more than
5 one certification shall be compensated in the additional amounts
6 specified in paragraphs 1 through 4 of this subsection for each
7 certification up to a maximum of Eight Thousand Dollars (\$8,000.00)
8 per year over and above the reporter's base salary, payable monthly.

9 E. Court reporters temporarily employed by the district court,
10 Workers' Compensation Court of Existing Claims, or Corporation
11 Commission shall ~~be compensated by the court fund of the court which~~
12 ~~they serve at a rate to be set by such court~~ receive an annual
13 salary of Fifty-seven Thousand Dollars (\$57,000.00). In addition,
14 court reporters temporarily employed pursuant to this subsection who
15 are required by the terms of their employment to travel outside
16 their county of residence shall receive reimbursement for mileage
17 actually and necessarily traveled to and from the place of
18 attendance at a rate not to exceed the rate of reimbursement
19 specified in the State Travel Reimbursement Act for state employees.
20 Any travel reimbursement shall be paid from the court fund of the
21 court where the service of the temporarily employed court reporter
22 is provided.

SECTION 2. AMENDATORY 20 O.S. 2021, Section 125, as last amended by Section 4, Chapter 316, O.S.L. 2025 (20 O.S. Supp. 2025, Section 125), is amended to read as follows:

Section 125. A. 1. In all counties of the state, there is created the office of secretary-bailiff for district judges and associate district judges, and a secretary-bailiff for business court judges, with each such secretary-bailiff to be appointed by order of the district judge, associate district judge, or business court judge to serve at the will of the appointing judge. The Chief Justice of the Supreme Court shall approve by administrative directive the number and assignments of secretary-bailiffs in all counties of the state. Each secretary-bailiff shall be paid a salary pursuant to the salary schedule established by the annual appropriation for the district courts and in accordance with the job description for the position to which appointed. For fiscal year ~~2023~~ 2027 and each fiscal year thereafter, each secretary-bailiff shall receive an annual salary ~~of Forty-two Thousand Dollars (\$42,000.00)~~ within the following ranges:

- a. for secretary-bailiffs with less than five (5) years of experience, Forty Thousand Dollars (\$40,000.00) to Forty-five Thousand Dollars (\$45,000.00),
- b. for secretary-bailiffs with at least five (5) years but less than ten (10) years of experience, Fifty

1 Thousand Dollars (\$50,000.00) to Fifty-five Thousand
2 Dollars (\$55,000.00),

3 c. for secretary-bailiffs with at least ten (10) years
4 but less than twenty (20) years of experience, Sixty
5 Thousand Dollars to Sixty-five Thousand Dollars
6 (\$65,000.00), and

7 d. for secretary-bailiffs with at least twenty (20) years
8 of experience, Seventy Thousand Dollars (\$70,000.00)
9 to Seventy-five Thousand Dollars (\$75,000.00).

10 2. In addition to their base salaries, secretary-bailiffs shall
11 be paid annually a longevity payment for their years of service as
12 follows:

13 a. Five Hundred Dollars (\$500.00) for their first through
14 fourth years of service,

15 b. Seven Hundred and Fifty Dollars (\$750.00) for their
16 fifth through ninth years of service,

17 c. Nine Hundred Dollars (\$900.00) for their tenth through
18 nineteenth years of service, and

19 d. One Thousand One Hundred Dollars (\$1,100.00) for their
20 twentieth and each year of service thereafter.

21 For the purpose of payment for longevity, "years of service" is
22 defined as all years served as a secretary-bailiff for a district
23 judge, associate district judge, or business court judge. Longevity
24

1 payments shall be made on July 1 of each year following completion
2 of the first year of service as defined herein.

3 3. In each business court division, the business court judge
4 may appoint a law clerk, who shall be an attorney licensed or
5 eligible to become licensed to practice law in this state, to serve
6 at the will of the appointing judge with an annual salary to be set
7 by the Chief Justice.

8 4. In every county of the state, each district judge and each
9 associate district judge, including business court judges in
10 counties with a business court division, may by order appoint
11 additional necessary court personnel subject to the approval of the
12 Chief Justice. A part-time bailiff shall be paid out of the court
13 fund of the county where appointed at the rate set by administrative
14 directive for each hour that such person actually attends the court
15 and performs services, or a pro rata fraction thereof for less than
16 an hour of service. Notwithstanding any other provision of law,
17 each district judge and associate district judge may contract with
18 the sheriff of the county to allow a deputy sheriff to provide
19 bailiff service to the court.

20 B. With the approval of the presiding judge, a special judge
21 may appoint a secretary-bailiff or other personnel in accordance
22 with the administrative order of the Chief Justice.

23 C. No judge shall engage more than one full-time secretary-
24 bailiff at any given time except only during the progress of a jury

1 trial, when a part-time bailiff may be engaged subject to the
2 approval of the Chief Justice. In the latter event, no more than
3 one additional bailiff shall be engaged to take charge of the jury.
4 The costs of meals and lodging of bailiffs ordered to keep a jury
5 together during the process of a trial or after the jury retires for
6 deliberation shall be lawfully paid from the court fund.

7 D. A district judge who sits regularly in more than one county
8 may employ only one full-time secretary-bailiff in the judicial
9 district of the judge, and in any other county of the district the
10 judge may engage a bailiff only on a part-time basis when such judge
11 sits in the county as a judge pursuant to the procedures set forth
12 by the Chief Justice in the administrative directive. The cost of
13 the operation of the office of a district judge of a multi-county
14 judicial district, including the purchase of equipment and supplies,
15 may be apportioned among the counties of that judicial district, or
16 appropriate division of that district, based upon the percentage of
17 revenue collected by the courts of the district.

18 E. The Administrative Director of the Courts shall develop and
19 promulgate job descriptions, salary schedules, and time-keeping
20 forms for part-time bailiff personnel. The Chief Justice of the
21 Supreme Court, through the Office of the Administrative Director of
22 the Courts, shall promulgate rules for the compensation for overtime
23 for all secretary-bailiff and part-time bailiff personnel employed.

1 F. Persons employed by a county that does not meet the
2 requirements of Section 951 of Title 19 of the Oklahoma Statutes,
3 and who serve as full-time secretary-bailiffs or full-time bailiffs
4 shall be eligible to participate in the state retirement system and
5 state insurance programs and any other benefits as are provided to
6 state employees in the unclassified service. All part-time bailiff
7 personnel shall be compensated by the local court fund.

8 G. On October 1, 1989, the position of full-time bailiff shall
9 be redesignated as the position of secretary-bailiff in accordance
10 with the job descriptions, salary schedules, and procedures approved
11 by the Chief Justice. Additional secretary-bailiff positions shall
12 be created as funding and employee positions are available.
13 Counties shall be allowed to provide additional support personnel to
14 the judges sitting in such counties to the extent that funding is
15 available.

16 H. Any secretary-bailiff who is certified by the Council on Law
17 Enforcement Education and Training (CLEET) as a basic peace officer
18 shall have and exercise all the powers and authority of a peace
19 officer. The Office of the Administrative Director of the Courts
20 shall promulgate rules which prescribe the duties for all CLEET-
21 certified secretary-bailiffs. The provisions of this subsection
22 ~~will~~ shall not entitle a CLEET-certified secretary-bailiff to
23 participate in the Oklahoma Police Pension and Retirement System.

24 SECTION 3. This act shall become effective July 1, 2026.

SECTION 4. It being immediately necessary for the preservation
of the public peace, health or safety, an emergency is hereby
declared to exist, by reason whereof this act shall take effect and
be in full force from and after its passage and approval.

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